UNW BACKGROUND GUIDE

AMSIMUN'26

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Dear Delegates,

It is with great pleasure that we welcome you to the United Nations Women Committee at this year's AMSIMUN. We are excited to see your debates and discussions as you engage with pressing gender-related conflicts, and we are really looking forward to making your experience at AMSIMUN both meaningful and memorable.

This conference is a space for discussion, critical thinking, and practical problem-solving. Within UNWOMEN, your role is to examine the real issues affecting women and girls globally, including access to education, economic participation, legal protection, and social inequality. Your task as delegates is to represent your assigned countries accurately, analyze existing policies, and work together to propose realistic and effective solutions. Throughout the sessions, you will be expected to participate actively in moderated and unmoderated debates, collaborate with other delegates, and contribute to drafting resolutions that reflect both your national stance and the goals of UNWOMEN. We encourage you to speak with confidence, negotiate respectfully, and remain open to compromise. We are actively awaiting the ideas that you will craft, the coalitions that you will forge, and the leadership you will embody.

If you need any assistance or guidance at any point, please do not hesitate to reach out to us. We look forward to seeing your dedication, engagement, and commitment during the committee sessions.

With our warmest regards and highest respect,
Karin Al Zaher & Fadwa Al Maktabi

Topic: Defining ‘Woman’ in International Law: Balancing Sex-Based Rights and Gender Identity

The definition of "woman" in international law is increasingly disputed by states and institutions that attempt to balance traditional sex-based protections with current recognition of gender identity. The question determines which individuals receive human rights protection and how equality assessment occurs, and which methods are used to create gender-based policies.

The Convention on the Elimination of All Forms of Discrimination against Women (CEDAW) and other core treaties define sex-based discrimination through their understanding of women as adult human females. UN entities now recognize that gender identity and sexual orientation can serve as legitimate grounds for severe human rights violations, which they advocate protecting against discrimination based on these factors. The situation presents a complex legal and political issue that needs to find a way to maintain sexual discrimination protections developed to counteract past injustices against women and girls while protecting individuals whose gender identity differs from their biological sex.

History

The current dispute about the legal definition of "woman" for international law purposes started because people wanted to solve the problem of women being denied access to public spaces and equal legal rights. The UN Charter together with the Universal Declaration of Human Rights which serves as the first UN legal instruments establishes equal rights for men and women but does not provide a legal definition of the term "woman."

The UN General Assembly adopted the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW) on December 18, 1979, which established itself as an international rights document for women. CEDAW defines discrimination against women as any distinction, exclusion, or restriction made on the basis of sex that impairs or

nullifies women's enjoyment of human rights and fundamental freedoms and it has been ratified by 189 states which makes it one of the most widely accepted human rights treaties. The treaty and the CEDAW Committee work established a sex-based definition of "woman" which examined the particular discrimination that women experience in their political, educational, and employment rights, as well as their health and family responsibilities.

The sex-based method developed after years of activism which began after World War II when women across the world lost their right to vote and their ability to own property and their access to professional careers. The UN Commission on the Status of Women which the UN established in 1946 began to advocate for specific protections which depended on biological sex differences which included maternity and reproductive health rights. The Decade for Women (1975-1985) which began in the 1970s brought international feminist movements to CEDAW drafting and gave more importance to women-specific risks of violence and poverty and salary discrimination.

International and regional human rights organizations started investigating sexual orientation and gender identity issues during the period from the late 1990s to the 2000s, which introduced new challenges for establishing the definition of "woman" as a category. The European Court of Human Rights 2002 Goodwin v. UK decision and other landmark cases established transgender rights protections which developed into wider legal safeguards for "gender identity" protection. The European Court of Human Rights established "transsexuality" as a protected status under Article 14 of the European Convention on Human Rights non-discrimination clause for the Council of Europe system, while the 2011 Istanbul Convention became the first treaty to recognize gender identity as a basis for discrimination. The UK Supreme Court's April 2025 ruling that "woman" under the Equality Act refers to biological sex has created more disputes about how countries should interpret treaties according to the Vienna Convention on the Law of Treaties, while some UN experts predict rights violations will occur and others support maintaining sex-based distinctions.

The issue has created a major divide between states, U.S. states such as Kansas and Tennessee and Iowa and Utah and West Virginia and Wyoming use reproductive biology to define "female" for their laws about women-only spaces, while Eastern European countries like Bulgaria and Hungary and Russia refuse to accept any legal recognition of gender. Argentina became the first country to allow gender changes through self-declaration without

requiring medical evidence in 2012, while Oman, Malaysia ,Saudi Arabia, the UAE and South Sudan enforce strict sex-based category rules which prohibit cross-gender identification.

Analysis

The question of how to define the term “woman” in international law has become one of the most complex legal debates in contemporary human rights practice. Women, as a sex class, have historically faced exclusion from education, property, political participation, employment, and protection from violence. International human rights law was initially drafted to address and prevent discrimination rooted in biological sex. For example, article 1 of the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW), defines prejudice against women as “any distinction, exclusion, or restriction made on the basis of sex.”

In recent decades, however, the development of these international human rights standards has expanded to include sexual orientation and gender identity. This “trend” caused an uproar in certain societies with specific ideologies. The Trans Murder Monitoring project, for example, has documented over 5,000 reported killings of trans and gender-diverse people since 2008, with 350 cases recorded in the last year alone, the majority involving trans women. In the United States, at least 372 transgender and gender-expansive people were killed between 2013 and 2025, around 61% of them Black trans women Many soft law instruments rose over time, which broadened the definition of gender identity. For instance, the Yogyakarta Principles were published documents centered around gender identity and sexual orientation, which seek to clarify how existing human rights law affirm that all people, regardless of gender identity, are entitled to equal protection from discrimination and violence. Several UN human rights organizations now treat gender identity as a prohibited ground of discrimination under general non-discrimination clauses, and they acknowledge transgender persons as a group facing heightened risk of violence and exclusion. This, as a whole, reflects a broader trend toward protecting identity and dignity under universal human rights guarantees, while still raising questions about how new interpretations interact with old sex-based traditions.

This shift created legal tension. Many sex based protection depend on recognizing biological differences between males and females. Temporary special measures under CEDAW aim to correct the historical underrepresentation of women in legislatures, where women still occupy only about 26–27% of parliamentary seats globally, despite being roughly half the population.. At the same time, transgender and diverse individuals face documented discrimination. Reports from UN special procedure point to cases of hate crimes, denial of healthcare, arbitrary detention, and social exclusion.UN-wide initiatives have called on states to collect data on violence and discrimination against LGBTI persons and to repeal laws that criminalize same-sex relations or non-normative gender expression, framing such reforms as necessary to fulfil existing obligations under the rights to life, equality before the law, and freedom from torture and ill-treatment. Ignoring gender identity in anti discrimination law risks leaving this group without clear protection.

A balanced approach, discussed by many scholars and international institutions, separates "sex" from "gender identity" and builds legal protections around each category with clarity. In practice, this means keeping sex specific measures where biological differences matter. Maternal healthcare services, pregnancy related workplace protections, and certain categories in elite sport depend on biological sex. At the same time, laws should clearly prohibit discrimination, harassment, and violence based on gender identity in areas such as employment, housing, education, and access to public services. Several UN and World Bank gender reports recommend that states continue collecting sex disaggregated data even when they also gather information on gender identity. Maintaining both datasets ensures that changes in legal language do not weaken the ability to track wage gaps, maternal mortality, or patterns of violence against women. When legislation clearly states whether "sex" or "gender identity" is the relevant criterion in a given context, courts are more likely to apply the law consistently, and states are less likely to adopt conflicting approaches.

Evidence based policymaking is central to managing the definitional question of "woman" in international law. Legislators and international bodies should rely on sex disaggregated statistics, focused research on the experiences of transgender people, and structured human rights impact assessments when revising rules on single sex spaces, sports eligibility, prison placement, or political quotas. UN supported global databases on violence

against women and girls document more than 10,000 national measures across 194 countries and territories, including over 1,500 legislative provisions. This material offers a strong empirical foundation for evaluating how sex specific protections function in practice. Expanding similarly systematic data collection on discrimination and violence based on gender identity would allow governments to assess whether inclusive reforms reduce harm without weakening protections designed to address sex based inequality. Clear definitions, reliable data, and careful legal drafting together strengthen the ability of international human rights law to protect both women as a sex class and individuals facing discrimination because of gender identity.

Questions to be answered in your resolutions:

How can international law clearly define "woman" to safeguard sex-based rights like reproductive health and sex-segregated spaces while protecting gender identity?

How has your country changed its laws about who counts as a "woman," and why?

What new UN rules could make sure both sex-based rights and gender identity are protected?

How can new global frameworks or UN resolutions reconcile protections for biological females with those for gender-diverse individuals?

What problems arise when countries disagree on whether "woman" means biology or identity?

What support do women and transgender people need when laws define "woman" differently?

How can we teach people to respect both women's biological rights and gender diversity?

Starter Resources

1)https://www.ohchr.org/sites/default/files/documents/issues/women/sr/statements/20240404-Statement-sr-vawg-cedaw-convention.pdf
2)https://www.who.int/health-topics/gender#tab=tab_1
3)https://cglj.org/human-rights-law/thematic-research-guides/sexual-orientation-gender-identity/
4)https://journals.openedition.org/cliothemis/4309?lang=en
5)https://www.npr.org/2023/05/03/1172821119/kansas-montana-tennessee-narrowly-define-sex-female-male-transgender-intersex
6)https://arc-international.net/blog/the-yogyakarta-principles-on-sexual-orientation-and-gender-identity-marking-ten-years-of-sogi-jurisprudence/

Country Matrix

United States of America (USA) - Canada - United Kingdom - Sweden - Germany - Netherland - France - Norway - Australia - New Zealand - Mexico - South Africa - Brazil - Japan - India - Saudi Arabia - Iran - Pakistan - Afghanistan (Taliban-controlled) - Egypt - Russia - China - Turkey - Nigeria - Kenya - North Korea - Somalia

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Global database on Violence against Women and Girls | UN Women Data Hub. (n.d.). UN Women Data Hub. https://data.unwomen.org/global-database-on-violence-against-women

UN-wide work to combat discrimination and violence against LGBTI people | UNHRC (n.d)

https://www.ohchr.org/en/sexual-orientation-and-gender-identity/un-wide-work-combat-discrimination-and-violence-against-lgbti-people